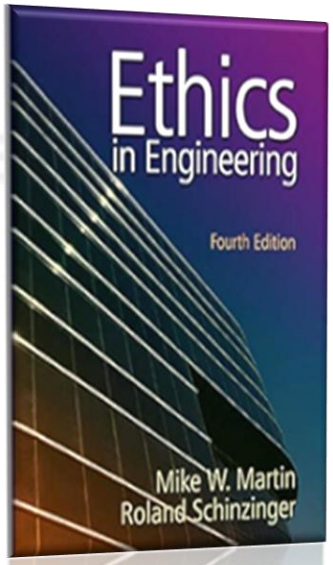
Engineering Ethics (HSS-422) (3+0)

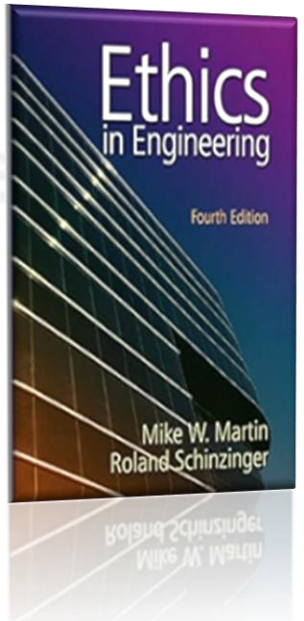






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A FRAMEWORK FOR ETHICAL DECISION MAKING

Week No 06

By Engr. Syed Rizwan Ali

Learning Outcomes

In this Lecture will cover ..

- Understand the Fundamentals of Ethical Decision Making.
- Identify and Recognize Ethical Issues.
- Effective Information Gathering for Ethical Decision Making.
- Apply Ethical Decision-Making Frameworks.
- Implement Ethical Practices in Professional Settings.

Department of Computer & Software Engineering
Karachi Campus

A FRAMEWORK FOR ETHICAL DECISION MAKING



Introduction to Ethical Decision Making

❖ **Key Terms:**

- **Ethics:** The principles of right and wrong that guide an individual in making decisions. Ethics involve considerations of fairness, equity, respect for others, and the inherent dignity of all individuals.
- **Decision Making (DM):** The process of selecting DM from several alternatives. In a professional context, DM is often involves weighing various factors, including potential outcomes, values, and ethical implications.

Introduction to Ethical Decision Making

❖ **Background:**

- An ethical issue is a situation or problem that requires an individual or organization to choose between alternatives that must be evaluated as right (ethical) or wrong (unethical).
- Ethical decision making is crucial in professional settings as it underpins the integrity and success of an organization. It involves choosing actions that are not only legally compliant but also morally right, reflecting the organization's values and respect for stakeholders.

Introduction to Ethical Decision Making

❖ **Background:**

- Ethical decisions contribute to a positive organizational culture, enhance reputation, and build trust with employees, customers, and the wider community.
- In the long term, ethical decision-making drives sustainable business practices and mitigates risks associated with unethical behavior.

Introduction to Ethical Decision Making

- **Recognize an Ethical Issue:**
- **Identification of Ethical Dilemmas:** Involves recognizing situations where a decision has significant moral implications. This is the first step in the ethical decision-making process and requires an awareness of how one's actions affect others and the broader environment.
- Ethical dilemmas often present themselves as conflicts between competing values or interests, where the right course of action is not immediately clear.

Introduction to Ethical Decision Making

❖ **Workplace Examples:**

- A manager facing a choice between laying off a small number of employees or cutting salaries for the entire team to reduce budget expenditures.
- A salesperson considering whether to omit or downplay negative information about a product to close a sale.
- An executive deciding whether to invest in environmentally sustainable, yet more costly, production methods.

Introduction to Ethical Decision Making

- **Workplace Examples:**
- A healthcare professional balancing patient confidentiality with the need to inform family members about a patient's health condition.

Get the Facts

- Importance of Gathering Information:
- Tips on How to Collect Facts:
  - Who to Talk To
- Tips on How to Collect Facts:
  - What to Ask:
- Tips on How to Collect Facts:
  - Where to Find Information:

Get the Facts

❖ **Importance of Gathering Information:**

- Gathering all relevant information is a fundamental step in the ethical decision-making process. Before making a decision, it is crucial to understand the full context of the situation, including the potential impact on all stakeholders.
- Collecting comprehensive information ensures that decisions are made based on a well-rounded understanding of the issues at hand, leading to effective outcomes.

Get the Facts

- **Tips on How to Collect Facts:**
- **Who to Talk To:**
- Engage with all parties directly affected by the decision to get a diverse range of perspectives.

- Consult with experts or individuals with experience in similar situations to gain insights into potential implications and solutions.

Get the Facts

- **Tips on How to Collect Facts:**
- **What to Ask:**
- Inquire about the specific details of the situation, including who will be impacted and how.
- Ask open-ended questions to encourage thorough and thoughtful responses.
- Seek clarity on any legal, financial, or operational constraints that may influence the decision.

Get the Facts

- **Tips on How to Collect Facts:**
- **Where to Find Information:**
- Review relevant documents, such as company policies, industry standards, legal guidelines, and past precedent.

- Utilize credible sources of information, including academic research, professional organizations, and industry publications, to understand broader ethical considerations and trends.

Get the Facts

- **Tips on How to Collect Facts:**
- **Where to Find Information:**
- Explore online databases and libraries to gather historical data, case studies, and other relevant materials that can inform the decision-making process.

Importance of Recognizing Ethical Issues

- The importance of recognizing ethical issues early in the decision-making process cannot be overstated, as it is fundamental to ensuring responsible decision-making and maintaining the integrity of professional practices.
- Early recognition allows individuals and organizations to proactively address moral dilemmas before they escalate, promoting a culture of transparency and accountability.

Importance of Recognizing Ethical Issues

- **For Example:** A situation involving conflicts of interest, potential harm to people and the environment, legal concerns, and violations of company policy and public standards of decency is the Volkswagen emissions scandal.



Importance of Recognizing Ethical Issues

- In this case, Volkswagen engineers installed software in diesel engines to cheat on emissions tests, allowing the vehicles to meet regulatory standards during testing while emitting up to 40 times the legally allowed limit of nitrogen oxides during regular driving.
- This action represented a conflict of interest as the company prioritized financial gains and market dominance over environmental responsibility and public health.

Importance of Recognizing Ethical Issues

- The deceit not only caused significant environmental damage but also violated numerous legal standards globally, leading to billions of dollars in fines and settlements.
- Additionally, it breached the company's own policies on ethical conduct and corporate responsibility, severely damaging Volkswagen's reputation and eroding public trust.

Importance of Recognizing Ethical Issues

- This scandal illustrates the complex interplay of ethical issues, including conflicts of interest, legal violations, and the broader impact on society and the environment.

Lists of the Common Indicators

- Here are common indicators that a situation might have ethical implications:
- **Conflict of Interest:** Situations where personal interests could influence professional judgment or actions.
- **Confidentiality Breaches:** Instances where private or sensitive information is at risk of unauthorized disclosure.
- **Inequality or Discrimination:** Actions or decisions that unfairly favor or disadvantage specific groups or individuals

Lists of the Common Indicators

- **Legal Compliance Issues:** Circumstances that may violate laws, regulations, or industry standards.
- **Financial Misconduct:** Situations involving bribery, embezzlement, fraud, or other financial irregularities.
- **Misuse of Resources:** Inappropriate or unethical use of company assets or resources for personal gain.

Lists of the Common Indicators

- **Unfair Treatment of Employees:** Practices that undermine employee rights, such as harassment, bullying, or exploitation.
- **Safety Violations:** Actions or conditions that compromise the safety and well-being of individuals.
- **Environmental Harm:** Decisions or actions that have a negative impact on the environment or violate environmental ethics.

Lists of the Common Indicators

- **Misrepresentation or Deception:** Providing false or misleading information, or engaging in deceptive practices.
- **Neglect of Duty:** Failing to fulfill one's responsibilities or care for the interests of stakeholders.
- **Conflict with Organizational Values:** Actions that are at odds with the core values or ethical standards of the organization.

Implementation of the Ethical Decision-Making Framework

- **Applying the Framework in Daily Practice:**

- The implementation of an ethical decision-making framework in daily professional practice involves integrating ethical considerations into every aspect of organizational operations.
- It requires a proactive approach to anticipate potential ethical issues and address them systematically. Organizations can achieve this by:

Implementation of the Ethical Decision-Making Framework

- **Training and Awareness:**

- Conduct regular training sessions for employees at all levels to ensure they understand the ethical decision-making framework and how to apply it in their roles.

- Develop case studies and scenarios that employees might encounter in their work to practice applying the framework.

Implementation of the Ethical Decision-Making Framework

- **Policy Integration:**
- Embed ethical considerations into the organization's policies and procedures. This includes clear guidelines on how to handle ethical dilemmas and the steps to follow in the decision-making process.

- Ensure that these policies are accessible and communicated clearly to all members of the organization.

Implementation of the Ethical Decision-Making Framework

- **Decision-Making Structures:**
- Establish committees or ethics officers responsible for guiding and reviewing decisions from an ethical perspective.

- Create channels for employees to seek advice and report ethical concerns anonymously, ensuring that they can raise issues without fear of retaliation.

Implementation of the Ethical Decision-Making Framework

- **Continuous Monitoring and Evaluation:**
- Implement mechanisms for monitoring and evaluating decisions to ensure they align with the organization's ethical standards.

- Use feedback and outcomes from past decisions to refine and improve the ethical decision-making process

Implementation of the Ethical Decision-Making Framework

- **Guidance on Integrating Ethical Considerations:**
- **Incorporate Ethics into the Core Values:**
- Define and communicate the organization's core ethical values clearly, making them an integral part of the corporate culture.

- Align business objectives with these ethical values to ensure consistent decision-making across the organization.

Implementation of the Ethical Decision-Making Framework

- **Guidance on Integrating Ethical Considerations:**
- **Encourage Ethical Leadership:**
- Leaders should model ethical behavior and decision-making, setting a standard for others to follow.
- Encourage leaders to openly discuss ethical dilemmas and their decision-making processes to foster a culture of transparency and ethical awareness.

Implementation of the Ethical Decision-Making Framework

- **Guidance on Integrating Ethical Considerations:**
- **Regular Review and Adaptation:**
- Periodically review the ethical decision-making framework and its implementation to adapt to changing circumstances and lessons learned.
- Engage with stakeholders, including employees, customers, and community members, to gain insights into the effectiveness of the framework and areas for improvement.

Case Study - Microsoft's Trademark Dispute with Sky Drive



Case Study - Microsoft's Trademark Dispute with Sky Drive

- **Background:**
- Microsoft, a global technology leader, faced a trademark infringement lawsuit from British Sky Broadcasting Group (BSkyB) over the name of its cloud storage service, initially branded as "SkyDrive." BSkyB, a major British broadcasting company, argued that Microsoft's use of "SkyDrive" infringed on its "Sky" trademark, leading to potential confusion among customers.

Case Study - Microsoft's Trademark Dispute with Sky Drive

- **Issue:**
- The primary issue in this dispute was the likelihood of confusion between Microsoft's SkyDrive and BSkyB's "Sky" trademark. BSkyB claimed that the similarity in names could lead customers to mistakenly associate SkyDrive with BSkyB's services, which could dilute its brand identity and cause commercial losses.

Case Study - Microsoft's Trademark Dispute with Sky Drive

- **Legal Proceedings:**

- The case was brought before the High Court of Justice in England, where BSkyB successfully argued that the "SkyDrive" name infringed on its trademarks. The court ruled in favor of BSkyB, finding that there was a likelihood of confusion among the public between the two brands, particularly given that both companies operated in related technological and entertainment fields.

Case Study - Microsoft's Trademark Dispute with Sky Drive

- **Resolution:**

- After the court ruling, Microsoft initially considered appealing the decision but eventually reached a settlement with BSkyB.
- As part of the agreement, Microsoft agreed to rename its cloud storage service and paid an undisclosed financial settlement to BSkyB. Subsequently, Microsoft rebranded SkyDrive to "OneDrive," which remains the name of its cloud storage service to this day.

Case Study - Microsoft's Trademark Dispute with Sky Drive

- **Conclusion:**

- The Microsoft-SkyDrive case study highlights the importance of thorough trademark research and consideration in brand naming strategies.
- It underscores the potential legal challenges and financial implications that can arise from trademark disputes, emphasizing the need for businesses to carefully navigate intellectual property rights in their branding decisions.

Case Study - Samsung vs. Apple Patent Dispute



Case Study - Samsung vs. Apple Patent Dispute

- **Background:**
- Samsung and Apple, two of the world's leading technology companies, engaged in a high-profile legal battle over patent infringement claims. The dispute began in 2011 when Apple filed a lawsuit against Samsung, alleging that Samsung's smartphones and tablets infringed on Apple's intellectual property, specifically patents related to the design and functionality of the iPhone and iPad.

Case Study - Samsung vs. Apple Patent Dispute

❖ **Issue:**

- The core of the dispute revolved around several Apple patents, including those for the design of the iPhone's front face, the user interface, and the iconic “pinch-to-zoom” feature.
- Apple claimed that Samsung's products, such as the Galaxy series, copied the look and feel of its devices, leading to consumer confusion and unfair competition..

Case Study - Samsung vs. Apple Patent Dispute

❖ **Legal Proceedings:**

- The legal battle was fought in multiple courts around the world, but the most notable trial took place in the United States. In 2012, after a high-profile trial in California, the jury found that Samsung did infringe on Apple.s patents and awarded Apple over $1 billion in damages.
- However, subsequent appeals and retrials led to adjustments in the number of damages owed.

Case Study - Samsung vs. Apple Patent Dispute

❖ **Resolution:**

- After years of litigation, Samsung and Apple agreed to settle the remaining disputes in 2018. While the exact terms of the settlement were not disclosed, it ended a significant chapter in the ongoing battle between the two tech giants.
- The case highlighted the competitive nature of the technology industry and the importance of intellectual property rights.

Case Study - Samsung vs. Apple Patent Dispute

❖ **Conclusion:**

- The Samsung vs. Apple case is a landmark in the field of intellectual property law, illustrating the complexities of patent infringement in the technology sector.
- It underscored the aggressive strategies companies may employ to protect their innovations and the lengthy and costly nature of patent litigation.

Case Study - Samsung vs. Apple Patent Dispute

❖ **Conclusion:**

- The dispute also sparked discussions about the need for patent system reform, particularly concerning the balance between fostering innovation and preventing anti-competitive practices.

Thanks

Any Question

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